

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO.1079 OF 2006 with
CIVIL REVISION NO. 1080 OF 2006

Amezuddin and others

--- Defendant Nos. 31(Ka)-(Gha)/33- Cross-
Appellant-Petitioners

=Versus=

Joynal Abedin and others

----- Plaintiff- Respondent-Opposite Parties

None appears

----- For the Petitioners

Mr. Md. Mustafizur Rahman, Advocate

----- For the Opposite Party Nos. 1-16

Mr. Khan Md. Peer-E-Azam, Advocate

.... For the Opposite party Nos. 32-37

Heard and Judgment on 12.04.2018

As these two Civil Revisions were issued on the basis of the similar legal and factual aspects, therefore, these Rules are taken together for disposal by passing this common judgment.

At the instance of the present-defendant-appellant-petitioners, Amezuddin and others, these Rules have been issued calling upon the opposite party Nos. 1-16 to show cause as to why the judgment and decree dated 20.11.2005 passed by the learned Joint District Judge, 1st Court, Manikganj in Cross Appeal heard analogous with Title Appeal No. 39 of 2005 allowing the Cross Appeal in part thereby setting aside the judgment and decree dated 05.01.2005 passed by the learned Senior Assistant Judge, Shibalaya, Manikganj in Title Suit No. 111 of 1999 decreeing the suit in part in preliminary form and/ or pass such

other or further order or orders as to this court may seem fit and proper.

The common relevant facts for disposal of these Rules, *inter-alia*, are that the present-opposite party Nos. 1-16 as the plaintiffs filed the Title Suit No. 111 of 1999 in the court of the learned Senior Assistant Judge, Shebalaya, Manikganj for partition measuring 2.12 acres out of total 8.17 acres as described in the schedule of the plaint.

The present-petitioners as the defendants contested the suit by filing a written statement contending, *inter-alia*, that they were entitled to certain measurement of land out of the above total land and sought for proportionate saham.

After hearing the parties, the learned trial court decreed the suit in preliminary form in part upon the land measuring 69.60 decimals. Being aggrieved there were two appeals being the Title Appeal Nos. 166 of 2001 and 167 of 2001. After hearing the two appeals the learned appellate court allowed the said appeals and remanded the suits for rehearing by his judgment and decree dated 05.06.2003. On receiving the suit on remand the learned trial court passed the preliminary decree in part by his judgment and decree dated 05.01.2005 allocating 16.30 decimals of land for the petitioners. Being aggrieved the present-opposite parties as the appellants preferred the Title Appeal No. 39 of 2005 which was allowed by the appellate court allocating saham of land measuring 88.01 decimals of land by his judgment and decree dated 20.11.2005. These two revisional applications have been filed by the present-petitioners in

both the Civil Revision No. 1079 of 2006 and Civil Revision No. 1080 of 2006 challenging the legality of the said impugned judgment and decree passed by the appellate court below on 20.11.2005 and the present two Rules were issued thereupon.

These two Rules have been appearing in the daily cause list for a long period of time but no one appears to support these Rules and, even, none appears when the Rules have been taken for passing judgment.

These two Rules have been opposed by the present-opposite parties.

Mr. Md. Mustafizur Rahman, the learned Advocate appearing for the opposite parties No. 1-16 and Mr. Khan Md. Peer-E-Azam, the learned Advocate appearing for the opposite party Nos. 32-37 jointly submit that there was no illegality or error in the impugned judgment passed by the learned appellate court, as such, the Rules should be discharged.

Considering the above submissions made by the learned Advocates appearing for the opposite parties and also considering the revisional applications in both the Rules filed under Section 115 (1) of the Code of Civil Procedure along with annexures therein, in particular, the impugned judgments and also perusing the materials in the lower courts' records, it appears to me that the original plaintiff Joynal Abedin filed the partition suit and the learned trial court after hearing the parties passed the preliminary decree in part and the lower appellate court preferred by the said Joynal Abedin as the appellants

allowed the appeals and allocated saham as per the documents and also allocated the saham to the opposite parties (the present-petitioner No. 5) but no saham was allocated in favour of the present-petitioners No. 1-4 being heirs of Nowab Ali because the said Nowab Ali already transferred his portion of land prior to his death by the registered deed dated 07.02.1962, therefore, the trial court and the appellate court given no saham to the present-petitioner as the heirs of Nowab Ali.

It further appears that the opposite party Nos. 1-16 as he petitioners in the Civil Revision No. 2279 of 2006 (in another Rule) has already been non prosecuted the Rule, therefore, the Rule was discharged for non-prosecution by accepting the judgment passed by the learned appellate court dated 20.11.2005.

In view of the above, I am satisfied that the learned appellate court below committed no error of law by concurrently finding that the present-petitioner Nos. 1-4 were not entitled to get any saham in the partition suit, except the present-petitioner No. 5, Nuru Fakir, who has already been given saham as he prayed for.

I am, therefore, not inclined to interfere into the judgment and decree passed by the learned appellate court below.

Accordingly, I do not find merit in these two Rules.

In the result, the Rule issued in the Civil Revision No. 1079 of 2006 and Civil Revision No. 1080 of 2006 are hereby discharged.

The ad interim order of stay granted at the time of issuance of these two Rules upon the proceedings of Title Suit No. 111 of 1999 in

the court of the learned Senior Assistant Judge, Shebalaya, Manikganj and ad interim order of status quo are recalled and vacated.

The Section is directed to communicate this judgment and order to the concern court immediately and the Section is also directed to send down the lower court's records at once.